

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joel Mentor	Team: Team # 6	CCRB Case #: 200505861	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 04/08/2005 12:30 AM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 10/8/2006	Precinct: 103
Date/Time CV Reported Fri, 05/27/2005 9:09 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/26/2005 12:00 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Lazar	00920	935168	103 PCT
2. POM John Toal	06551	935852	103 PCT
3. POM Michael Carleo	12860	934580	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Courtney Nilan	24511	935402	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Toal	Abuse: PO John Toal stopped and questioned § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . POM Michael Carleo	Discourtesy: PO Michael Carleo spoke obscenely and rudely to § 87(2)(b) [REDACTED]	B . Unsubstantiated
C . POM Richard Lazar	Force: PO Richard Lazar used physical force against § 87(2)(b) [REDACTED]	C . Unsubstantiated
D . POM Michael Carleo	Abuse: PO Michael Carleo frisked § 87(2)(b) [REDACTED]	D . Unsubstantiated
E . POM Michael Carleo	Abuse: PO Michael Carleo searched § 87(2)(b) [REDACTED]	E . Unsubstantiated

Synopsis

On April 8th 2005, at approximately 1:40 AM, § 87(2)(b) was socializing with his two friends, § 87(2)(b) and § 87(2)(b) in front of his house, which is located at § 87(2)(b) in Queens, New York. A marked police van then drove by and stopped in front of § 87(2)(b)'s residence. The driver of the van, PO John Toal, saw § 87(2)(b) and asked him what he was doing out on the street (Allegation A). PO Toal, PO Richard Lazar, PO Courtney Nilan and PO Michael Carleo then exited the patrol van to confront § 87(2)(b).

§ 87(2)(b) was asked to produce his identification, which the officers then used to perform a warrant check on him. After being handed back his identification, PO Carleo told § 87(2)(b) "you can't be out this fucking late, you better fucking go inside" (Allegation B). § 87(2)(b) then told the officer that he could study and get a badge and a gun just like the officer had done. PO Carleo said "oh, you have a gun?" PO Carleo and PO Lazar then grabbed § 87(2)(b). PO Lazar banged his head onto a nearby car (Allegation C) and then PO Carleo proceeded to frisk and search § 87(2)(b) (Allegations D & E).

§ 87(2)(g) it is recommended that Allegation A be closed as unsubstantiated. § 87(2)(g) it is recommended that Allegation B be closed as unsubstantiated. § 87(2)(g) it is recommended that Allegation C be closed as unsubstantiated. § 87(2)(g) it is therefore recommended that Allegations D and E be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) who is § 87(2)(b) old, was interviewed at the CCRB on June 8, 2005, concerning his encounter with members of the NYPD in April of 2005 (enclosure # 4F-4G).

On April 8, 2005 § 87(2)(b) did not recall the incident date, but the CCRB determined the date through IAB intake tape 05-14351) § 87(2)(b) -old § 87(2)(b) was hanging out with two friends, § 87(2)(b) and § 87(2)(b) both of whom are § 87(2)(b) old. They were in front of § 87(2)(b)'s grandmother's house at § 87(2)(b) Queens, NY, 11433. The time was approximately 1:40 AM. They were standing outside the gate that surrounds the front yard. A marked police van from the 103rd Precinct rolled up, and stopped in front of the house. Inside where four uniformed white officers, three males, and one female. A male was driving, and the female was in the front passenger seat. The driver called out, "What are you doing?" § 87(2)(b) replied, "We're just chilling in front of my house." One of the officers in the back replied, "that's not your fucking house."

One of the officers in the back jumped out (PO1, 5'7 180-190lbs, and a small bald spot, later determined to be PO Michael Carleo) followed by the next officer in the back (PO2, 6'1, 210lbs, short dark hair, who § 87(2)(b) later learned was PO Richard Lazar), and finally the driver (PO3, 5'7, 210lbs, later determined to be PO John Toal). § 87(2)(b) told his two friends to leave because he sensed trouble and did not want them involved. The officers let the two friends leave, § 87(2)(b) is not sure whether or not they witnessed the subsequent events from down the street. PO Carleo asked for § 87(2)(b)'s identification, which he immediately produced. The officer looked at his identification, and then looked at the house address, he then asked § 87(2)(b) what his address was. § 87(2)(b) gave the information. The officer then went back to the van, and along with the other three, ran § 87(2)(b)'s information through the computer to see if he had any active warrants.

When PO Carleo returned, he gave § 87(2)(b) his identification back and began to spew statements at him. Among other things, he said, "You can't be out this fucking late," and, "You better fucking go inside. We better not see you out here if we pass by again." § 87(2)(b) had gone into his front yard at this point. As the officer continued to verbally abuse him, § 87(2)(b) stated, "The only reason you're talking to me like this is because you have authority. But I can study and get a badge and a gun just like you did." PO Carleo then said, "Oh, you have a gun?" § 87(2)(b) replied that he did not say that, but the officer ignored him and called out to the other officers, "He has a gun, aren't you guys going to help me?" The other officers were standing by the police van, which was parked on the street. PO

Carleo grabbed § 87(2)(b)'s arm and began to pull on him, the other two male officers then grabbed him also. He was dragged out of the yard and slammed on his grandmother's Silver Dodge Caravan. PO Lazar then grabbed his head and slammed it into the van's hood.

§ 87(2)(b) was handcuffed and searched. First he was frisked for weapons, then PO Carleo went into his pockets, and retrieved his cell phone, keys and money. His socks were also examined. PO4 (5'6, heavy build, blond hair, later determined to be PO Courtney Nilan) then came out the van and got his identification from one of the male officers § 87(2)(b) could not recall which one). She went back to the van and started checking the computer again. PO Toal then asked § 87(2)(b) "You sure you don't have any warrants? Have you ever gotten a summons before?" § 87(2)(b)

§ 87(2)(b) The three male officers then had § 87(2)(b) sit on the sidewalk curb, and they joined the female officer. At this point, § 87(2)(b) noticed that PO2's name was Lazar. Finally, PO Nilan returned and handed § 87(2)(b) his identification, which was wrapped over with a summons § 87(2)(a) 160.50. He was let out of the handcuffs, and the officers left. § 87(2)(a) 160.50

§ 87(2)(b) stated that he received a letter in the mail informing him that his summons had been dismissed. § 87(2)(b) subsequently lost the letter. A call to the Queens Criminal Court on February 17, 2006 revealed that the summons information was sealed.

§ 87(2)(b)

Attempts were made to interview both § 87(2)(b) and § 87(2)(b). On June 14, 2005, § 87(2)(b) was told to contact his friends to see if they had witnessed anything and if they would cooperate with the CCRB investigation (enclosure # 4H). § 87(2)(b) failed to contact § 87(2)(b) or § 87(2)(b). The CCRB investigator was able to get the phone number of § 87(2)(b) on June 28, 2005 (enclosure # 4I), and a call was made to the number. § 87(2)(b) did not answer and a message was left on the voicemail. Another call was made on July 7, 2005, followed by a call on July 14, 2005. At this point, the phone was out of service. § 87(2)(b) was also contacted on July 14, 2005 and told to talk to § 87(2)(b). § 87(2)(b) did not follow up on the request (enclosures # 8A-8D).

Results of Investigation

Officer Statements

PO Richard Lazar:

PO Richard Lazar, Tax ID # 935168, of the 103rd Precinct, was interviewed at the CCRB on July 21, 2005, concerning the events of an unspecified date in April 2005 (enclosure # 5A-5E).

PO Lazar does not have a memo book entry about the incident in question and could not recall the date of the incident. He also had no record of issuing a summons on April 7, or 8, 2005. However, PO Lazar was assigned to patrol van # 5734 on April 7-8, 2005. The complainant, § 87(2)(b) also does not remember the date of the incident. PO Lazar recalled the incident based upon some general details provided to him by the investigator. PO Lazar remembered driving in a marked van with other officers whom he could not recall. They saw a young black male standing with another youth in front of a house. PO Lazar could not recall which officer first addressed the young male. The officers exited their vehicle and approached the young male. His friend left the scene. It was approximately 1:00 AM, so they questioned the youth § 87(2)(b) as to his activities.

§ 87(2)(b) said he was just hanging out in front of his house, he was told to go inside, as PO Lazar explained that it was not a safe neighborhood. As he was going in, § 87(2)(b) said something about, "having a gun," or "getting a gun." PO Lazar and another unidentified officer grabbed § 87(2)(b) so that he could not get into the house. He struggled and tried to pull away. He was successfully pulled out from his front yard and handcuffed. PO Lazar said that he was frisked and searched for weapons, but that the other officer searched § 87(2)(b). § 87(2)(b) was being held next to a car, but he was not slammed into it and was compliant at this point. No weapon was recovered and § 87(2)(b) was given a summons § 87(2)(a) 160.50. PO Lazar, however, did not fill out the summons, or prepare a UF-250.

PO John Toal:

PO John Toal, Tax ID # 935852, of the 103rd Precinct, was interviewed at the CCRB on August 16, 2005, concerning the events of an undetermined date in April 2005 (enclosure # 5F-5J). PO Toal did not have any memo book entry regarding the incident in question, neither did he have a record of issuing a summons on April 7, or 8, 2005. There is also no indication that PO Toal was in patrol van # 5734 on April 7-8, 2005. PO Toal remembered the incident, but also could not recall the exact date, and he did not have a memo book entry regarding the incident that would provide further clues. However, PO Toal recalled that he was the operator of a marked patrol van on the date of the incident. He was with PO Lazar and two or three other officers whom he could not recall. He stated that he is assigned to work with different officers on different dates and could not recall who all his partners were since the incident was approximately four months ago.

Early in the morning (though he could not give a precise time, PO Toal said it was between 2:00 AM and 3:00 AM) PO Toal did recall that his team was tasked with routine sector patrol. § 87(2)(b) fell under the officers' patrol sector. While driving down the street, the police van's recorder (the officer who sits in the front passenger side of the vehicle) spotted three males hanging out in front of a house. Since it was very late, the recorder, whose identity PO Toal could not recall, asked the three males what they were doing. Two of the males dispersed, but one, the complainant, § 87(2)(b) became irate. He yelled something to the effect of "you fucking cops, you can't stop me, this is my house!" PO Toal said that § 87(2)(b)'s basic message was that the police were abusing their authority and had no right to question him.

The other officers, including PO Lazar, exited the vehicle to further question § 87(2)(b). PO Toal was still waiting in the van at this point. PO Toal heard § 87(2)(b) say, "you guys (the officers) have a badge and a gun. I have a gun." PO Toal got out of the van and saw § 87(2)(b) being handcuffed and frisked. PO Toal said that he did not witness who had handcuffed § 87(2)(b) nor could he recall who had frisked § 87(2)(b). PO Toal said that § 87(2)(b) had calmed down, and was compliant at that point. PO Toal said that he did not see an officer slam § 87(2)(b)'s head into a car. He also did not hear any officer cursing at § 87(2)(b) and neither did he curse at § 87(2)(b). PO Toal did recall that § 87(2)(b) did receive a summons § 87(2)(a) 160.50 though he could not recall which officer had issued it to him.

PO Courtney Nilan:

PO Courtney Nilan, Tax ID # 935402, of the 103rd Precinct, was interviewed at the CCRB on January 10, 2006, concerning events that occurred on an undetermined date in April 2005 (enclosure # 5Q-5U). PO Nilan recalled the incident, but believed that it did not occur on April 7, or 8, 2005, as previously believed. PO Nilan remembered that the incident did happen after midnight and that she was assigned to a 12-passenger marked patrol van. PO Nilan also recalled that PO Lazar and PO Toal were also in the vehicle. There were at least two more male officers in the van whose identity PO Nilan could not recall. PO Nilan said that the van was cruising slowly and that she was sitting in the front passenger side seat. PO Nilan noticed a group of approximately 6-8 youths who appeared to be between 16-19 years old. Due to the time of day, the youths were told to disperse if they did not live at the premise. PO Nilan could not recall which officer actually addressed the group. The young people walked away, except for one young male.

The other officers in the van walked out and confronted the youth (the complainant, § 87(2)(b)). PO Nilan could not hear what either party said. PO Nilan then saw an officer handcuff § 87(2)(b) so she got out of the van to see what was going on. PO Nilan first put down her pad, and missed some of what occurred. As she came around, one of the officers told her that § 87(2)(b) had said something about having a gun, and he was frisked in order to see if he did indeed possess a weapon. PO Nilan could not see if he was also searched. In addition, PO Nilan could not say which officer actually frisked § 87(2)(b). PO Nilan did not hear any officer curse or threaten § 87(2)(b). She also did not see PO Toal or any other officer subdue § 87(2)(b) or push his head onto a car. § 87(2)(b) was issued a summons § 87(2)(a) 160.50. She could also not recall if § 87(2)(b) produced any identification, and asserted that she did not write him the summons. The whole incident lasted approximately 10 minutes.

PO Michael Carleo:

PO Michael Carleo, Tax ID # 934580, of the 103rd Precinct, was interviewed at the CCRB on November 16, 2005, concerning the events of April 7 and 8, 2005 (enclosure # 5K-5P). On both April 7, and 8, 2005, PO Carleo worked tours of duty from 7:00 PM until 1:35 AM. He had no memo book entry regarding the incident in question, neither did he have record of issuing a summons on April 7, or 8, 2005. However, his memo book placed him in patrol van # 5734 with PO Richard Lazar. PO Carleo had no recollection of the incident. PO Carleo was shown a photo of the complainant and a basic description of the incident, but he could still not recall the incident.

Police Documents:

The police documents that were analyzed in connection with this case are: The IAB log tape # 05-14351 (the other IAB tape, 05-14576, was reported lost by IAB, enclosures # 9E). The 103rd Precinct's roll call for tour 3 on April 7, 2005. The 103 Precinct's UF-250 log for April 2005 and the New York State Police's Warrant Data sheet for § 87(2)(b) (enclosures # 6E-6J & 6K-6M). Finally, the MISD Warrant Data sheet for § 87(2)(b) (enclosure # 6N).

IAB log tape 05-14351 records the complaint § 87(2)(b) made to IAB in May 2005 (the date is not provided). § 87(2)(b) reported that he was given summons # § 87(2)(b) by a police officer with the tax registration number # 935852 (PO Toal). § 87(2)(b) also alleged that PO Lazar had slammed his head into a parked car. The time of incident on the summons is reported as April 8, 2005 at 1:40 AM.

The 103rd Precinct's roll calls were used to try to determine both the precise date of the incident in question, and the identity of all the officers involved. The IAB referral listed the incident date as April 8, 2005. On April 8, 2005, PO Lazar worked a tour of duty from 5:00 PM until 1:35 AM and was assigned to police van # 5734, along with PO Carleo. PO Toal also worked the same shift and was assigned to impact post # 33. PO Nilan was on the same tour and was assigned to impact post # 15 and 16 (enclosure # 6A-6B). There was no indication that PO Toal and PO Nilan would be assigned to van # 5734. There were thirteen other white male officers on duty during the tour who were assigned to various impact posts (enclosure # 6A-6B).

The 103rd Precinct's UF-250 log for April does not reveal a UF-250 for § 87(2)(b) and no UF-250 was created for § 87(2)(b) on April 8, 2005. However, PO Toal and PO Lazar did file other UF-250s on April 8, 2005 (enclosure # 6J). The New York State Police warrant data sheet reveals thirteen warrant searches done for § 87(2)(b) during the months of April and May in 2005. § 87(2)(g)

§ 87(2)(b). The dates that § 87(2)(b)'s name was checked were: April 14, April 17, April 26, April 27 and May 13, 2005. The latest time a warrant check was conducted was on April 14, 2005, at 7:49 PM, which does not correlate to the time frame (between midnight and 2:00 AM) given by the complainant and officers. The MISD warrant check for § 87(2)(b) came back with negative results.

Complainant CCRB History:

§ 87(2)(b) does not have any previous CCRB complaints (enclosure # 3A).

Officers' CCRB Histories:

Neither PO Lazar, nor PO Toal, have any previous substantiated CCRB cases (enclosure # 2A-2B).

Complainant Criminal Conviction History:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification:

§ 87(2)(b) identified PO Richard Lazar by name and provided PO John Toal's tax identification number from the summons he was issued. The identities of the officers were recorded in the IAB referral sheet, 05-14351 (enclosure # 4A-4C). However, the intake tape for IAB log 05-14576, which was generated when § 87(2)(b) called IAB about the same complaint, was lost (enclosure # 9E). Both PO Lazar and PO Toal, however, confirmed their participation in the incident. PO Nilan was discovered to be the only female officer on duty during the time of incident while analyzing the 103 Precinct roll call for April 7, 2005 (enclosure # 6A-6B). PO Nilan confirmed her participation in the incident.

PO Carleo's participation was based on the fact that he was assigned to marked patrol van # 5734 on April 7, 2005 (enclosure # 6A). Though PO Carleo claimed to have no recollection of the incident in question and did not recognize § 87(2)(b)'s photo § 87(2)(g)

There was no notation on the roll call, or PO Carleo's memo book that he transferred out of the van. PO Carleo was also unable to articulate what assignments he did take part in on April 7-8, 2005. The CCRB investigator also noted that PO Carleo was indeed balding in the middle portion of his head (enclosure # 5O).

Undisputed Facts:

It is undisputed that § 87(2)(b) was questioned by a group of officers riding in a marked van from the 103rd Precinct about his activities (this group was comprised of officers Toal, Lazar, Carleo, and Nilan). § 87(2)(b) was subsequently handcuffed, frisked, searched, and issued a summons for § 87(2)(a) 160.50. Both sides also agreed that the incident occurred at a late hour (after midnight), though neither side could provide the precise date of the incident.

Disputed Facts:

§ 87(2)(g)

Credibility Analysis:

§ 87(2)(g)

§ 87(2)(g)

Allegations

Allegation A: PO John Toal stopped and questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

PO Toal admitted to being the operator of the police van involved in the incident in question. PO Toal explained that the officer sitting in the front passenger seat (called the “recorder”) was the officer who originally addressed § 87(2)(b) PO Nilan, who recalled being the recorder during the incident, denied being the officer who initially addressed § 87(2)(b) and stated that she could not recall who had done so. PO Lazar also stated that he could not recall who had made the decision to stop and address § 87(2)(b)

§ 87(2)(g)

Barry Kamins quotes from the New York Court of Appeals case *People v. DeBour* in New York Search & Seizure Law when he writes that a request for information stop must be based on “some objective credible reason for that interference not necessarily indicative of criminality. Thus, the intrusion cannot be arbitrary, based on whim, curiosity, caprice, or a desire to harass” (enclosure # 1A-1B).

PO Toal stated that the officers were drawn to § 87(2)(b) because it was early in the morning and the officers wanted to know what the group of youths were doing congregating on the sidewalk. § 87(2)(b) stated that he told the officers that he was “chilling in front of his house,” but PO Carleo replied, “That’s not your fucking house.” § 87(2)(g)

Kamins writes that a common law inquiry is a “second, more intrusive level of contact with a citizen...activated by a “founded suspicion that criminal activity is afoot” (enclosure # 1D). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that Allegation A be closed as unsubstantiated.

Allegation B: PO Michael Carleo spoke obscenely and rudely to § 87(2)(b)

Allegation D: PO Michael Carleo frisked § 87(2)(b)

Allegation E: PO Michael Carleo searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) recalled that the female officer was sitting in the front passenger seat of the patrol van. PO Nilan later confirmed this fact during her interview. § 87(2)(g)

PO Toal, PO Nilan and PO Lazar all denied hearing any officer use profanity toward § 87(2)(b) PO Carleo claimed to have no recollection of the incident. § 87(2)(g)

It is therefore recommended that Allegation B be closed as unsubstantiated. Both PO Toal and PO Lazar alleged that § 87(2)(b) stated that he had, or was about to get, a gun. § 87(2)(b) admitted to saying that he could study and get a badge and a gun just as the officers had done. § 87(2)(b) explained that he believed the officers were abusing their authority and wanted to let them know that he could also attain their position if he wanted to. § 87(2)(g)

PO Lazar stated that § 87(2)(b) was frisked and searched, but claimed that he could not recall which officer had done it (PO Lazar denied doing it himself). PO Toal stated that § 87(2)(b) was frisked, but stated that he did not witness which officer had done it. To conduct a frisk, an officer must have a reasonable suspicion that the suspect is armed and poses a threat to his safety. In addition, an officer can conduct a frisk and search incident to the arrest of a suspect. § 87(2)(b) was ultimately issued a summons § 87(2)(a) 160.50, which is an offense he could have been arrested for. § 87(2)(g)

It is therefore recommended that Allegations D and E be closed as unsubstantiated.

Allegation C: PO Richard Lazar used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Lazar pushed his head into a parked car during their encounter on April 8, 2005. PO Lazar admitted to helping grab and hold § 87(2)(b) until he was handcuffed. § 87(2)(b) was then frisked and searched for weapons. § 87(2)(g)

§ 87(2)(b) admitted that § 87(2)(b) and § 87(2)(b) had walked away prior to the incident, and may not have witnessed the subsequent events. In addition, an effort was made to contact § 87(2)(b) but it was unsuccessful (enclosure # 4H-4I). In addition, § 87(2)(b) said that § 87(2)(b) would not cooperate with the investigation. Also, § 87(2)(b) did not seek medical treatment, nor did he articulate having any serious visible injuries due to the actions of PO Lazar. § 87(2)(g) It is therefore recommended that Allegation C be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: